

Member ID: _____

Time: _____

Rank: _____



LEGAL OFFICE PROCEDURES (245)

NATIONAL 2022

OBJECTIVE:

Multiple Choice (30 @ 3 points each) _____ (90 points)

PRODUCTION:

Job 1: Durable Power of Attorney _____ (100 points)

Job 2: Interrogatories _____ (100 points)

TOTAL POINTS _____ (290 points)

Test Time: 60 minutes

GENERAL GUIDELINES:

Failure to adhere to any of the following rules will result in disqualification:

1. Contestant must hand in this test booklet and all printouts if any. Failure to do so will result in disqualification.
2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests (handwritten, photocopied, or keyed) are allowed in the testing area.
3. Electronic devices will be monitored according to ACT standards.

EXAM GUIDELINES:

1. Ensure this test booklet contains 30 multiple choice questions and Jobs 1 and 2.
2. Key all jobs according to the instructions given.
3. Correct any and all formatting, spelling or grammar errors. Use the formatting guide in the *Style & Reference Manual*.
4. Your name or initials should *not* appear on any work you submit. Use your Member ID in any occasion you would normally key your reference initials.
5. In the lower **right** hand corner of ALL work submitted (unless otherwise specified), key your Member ID and job number.

Example:

99-9999-9999
Job 1

6. If you complete the event before the end of the time allotted, notify the proctor. Time may be considered a factor in determining a winner when there is a tie score.
7. Place your scoring sheet on top of your jobs. Arrange jobs in numerical order.

PRODUCTION STANDARDS	
0 Errors	100 Points
1 Error	90 Points
2 Errors	70 Points
3 Errors	50 Points
4+ Errors	0 Points

Multiple Choice

Choose the letter of the answer that *best* answers the question or completes the statement.

1. A(n) _____ is a formal request to the court that a plaintiff's lawsuit be terminated without further consideration.
 - A. interpleader
 - B. jurisdiction
 - C. order
 - D. motion to dismiss
2. The county or judicial district in which a case should be tried is called the _____.
 - A. venue
 - B. deposition
 - C. caption
 - D. locale
3. When the clerk of the court is listing the names of people who have been selected for jury duty, he or she is performing a(n) _____.
 - A. affirmation
 - B. impanel
 - C. appeal
 - D. reversal
4. In a civil action, the final determination by a court regarding the rights of each party is known as the _____.
 - A. appeal
 - B. notice of appeal
 - C. judgment
 - D. verdict
5. When a bank teller has been entrusted with money and converts the property for his or her own benefit, this is called _____.
 - A. larceny
 - B. embezzlement
 - C. aiding and abetting
 - D. extortion
6. The death of one human being that is intentionally caused and premeditated by another is known as _____.
 - A. murder
 - B. manslaughter
 - C. capital neglect
 - D. mens rea

7. The constitutional guarantee that each of the 50 states will give equal treatment to all people living in similar circumstances is called _____.
 - A. due process
 - B. equal protection
 - C. privileges and immunities
 - D. strict scrutiny
8. The part of Congress that includes two elected members from each state is the _____.
 - A. Senate
 - B. House of Representatives
 - C. General court
 - D. Legislative assembly
9. In-camera hearings are held _____.
 - A. in public with press coverage
 - B. at the employer's place of business
 - C. in a courtroom cleared of spectators
 - D. with photographers
10. The _____ enforces federal laws that make it illegal to discriminate against a job candidate or employee because of the person's race or age among other things.
 - A. ASPCA
 - B. USDA
 - C. USHHS
 - D. EEOC
11. Scenario: An employee set fire to the garage of an office building where she was previously employed. At the same time, another employee set fire to the front entrance of the same building. Neither person was aware of the other's actions. The entire building burned down and the night custodian was injured due to smoke inhalation. It is unclear which of the fires caused the injury. What is the reason that both people are held responsible?
 - A. Joint liability
 - B. Reasonable care
 - C. Trespass to land
 - D. Bi-responsible arson
12. Colton wants to sell his truck for \$19,000. Alex says, "I'll buy it right now for \$16,000 cash."
 - A. Alex has accepted the contract
 - B. Alex has used duress
 - C. Alex has disaffirmed the contract
 - D. Alex has made a counteroffer
13. When a business uses a customized and protected mark on its advertisements, product packaging, and other marketing areas, the mark is known as a(n) _____.
 - A. ligature
 - B. invention mark
 - C. trademark
 - D. mark of ownership

14. Business information that is confidential due to a secret manufacturing process or secret ingredients in a recipe is known as a _____.
 - A. service mark
 - B. trade secret
 - C. generic name
 - D. secondary line
15. A _____ is a person who receives a bequest in a will.
 - A. beneficiary
 - B. testator
 - C. trustee
 - D. next of kin
16. What is the best description of a holographic will?
 - A. A notice of inheritance that is typed and saved on a computer
 - B. A fake will that is meant to distract from the real will
 - C. A will that contains only virtual items left to people named in the will
 - D. A will that is handwritten and signed by the person who wrote it
17. A person who enters onto real property without authorization can be charged with _____.
 - A. burglary
 - B. trespassing
 - C. transgression
 - D. on-site fault
18. The legal action taken by a lender to terminate a borrower's home-mortgage agreement is called a _____.
 - A. remortgage
 - B. license
 - C. recording
 - D. foreclosure
19. The area of law that is related to matters concerning the rights and conduct of companies is known as _____ law.
 - A. commercial
 - B. corporate
 - C. family
 - D. criminal
20. A company that collects information about a person's credit is known as a _____.
 - A. collection agent
 - B. debtor
 - C. creditor
 - D. credit bureau

21. When at the beginning of a paragraph, what is the proper form of the following word?
- A. WHERE AS
 - B. WHEREAS
 - C. Whereas
 - D. Where As
22. Payments made to a partner of a divorced couple to cover expenses for children are called _____.
A. palimony
B. alimony
C. child support
D. chalimony
23. Matters *not* addressed in probate court include _____.
A. guardianships
B. conservatorships
C. name changes
D. divorce proceedings
24. An individual who files a petition is known as the _____. a minor or disabled adult is called the _____.
A. petitioner; respondent
B. respondent; petitioner
C. adult; dependent
D. filer; receiver
25. A person who dies without a will is known as _____.
A. testate
B. intestate
C. sans heirs
D. pro heirs
26. _____ is the title used for a judge, justice, and secretary of state.
A. The Honorable
B. Majesty
C. Esquire
D. King or Queen
27. The typists reference initials are keyed on a letter at the _____.
A. top right
B. bottom left
C. bottom center
D. bottom right

28. Which of the following sentences, is presented in the correct form?
- A. I, JOHN BLAIR COOK, residing in the City of AUSTIN, County of HAYS, State of TEXAS, do make, publish, and declare this to be my LAST WILL AND TESTAMENT.
 - B. I, John Blair Cook, residing in the City of Austin, County of Hays, State of Texas, do make, publish, and declare this to be my Last Will and Testament.
 - C. I, John Blair Cook, reciding in the City of Austin, Country of Hays, State of Texas, do make publish and declare this to be my last will and testament.
 - D. I, John Blair Cook, residing in the city of Austin, county of Hays, steate of Texas, do make, publish, and declare this to be my last will and trestament.
29. Which of the following sentences is presented in the correct form?
- A. The plaintiff is asking for a ten thousand dollar settlement.
 - B. The plaintiff is asking for a 10 thousand dollar settlement.
 - C. The plaintiff is asking for a \$10,000 settlement.
 - D. The Plaintiff is asking for a \$10,000 Settlement.
30. Which of the following sentences is presented in the correct form?
- A. The defendant felt her bosses actions were the proximate cause of the accident.
 - B. The defendant felt her boss'es actions were the proximate cause of the accident.
 - C. The defendant felt her boss' actions were the proximate cause of the accident.
 - D. The defendant felt her boss's actions were the proximate cause of the accident.

PRODUCTION

Directions: Your role is to key a pleading with a judgement using the information below.

Job 1: DURABLE POWER OF ATTORNEY

Grantor: Julia M. Brown

Attorney-in-fact: Nathan A. Brown

Be sure to follow the contest and format guidelines in the WSAP, the BPA Style & Reference Manual, and the General Instructions provided with this event.

Know All Men By These Presents:

That [*enter name of grantor*], Grantor, has made, constituted, and appointed, and by these presents does make, constitute, and appoint [*enter name of attorney-in-fact*] her true and lawful attorney-in-fact for her and in her name, place and stead, to:

ask, demand, sue for, recover and receive each and every sum of money, debt, account, legacy, annuity and demand belonging to [*enter name of grantor*], and to use any lawful means for the recovery thereof, and to deliver a satisfaction therefore, together with the right and power to compromise any claim on behalf of Grantor,

giving and granting unto [*enter name of attorney-in-fact*], said attorney-in-fact, full power and authority to do and perform all and every act and thing whatsoever necessary and appropriate to be done as [*enter name of grantor*] might do if personally present.

Witness my hand this _____ day of _____, 2021.

[*Include appropriate lines for notary public, witnesses, and grantor*]

JOB 2: INTERROGATORIES

Plaintiff: Alita Paul

Defendant: Douglas Murphy

Case No.: AF-3130

Venue: 8th Judicial Circuit, Lee County, Montana

Attorney of record: Marcus Dunn

Be sure to follow the contest and format guidelines in the WSAP, the BPA Style & Reference Manual, and the General Instructions provided with this event.

1. State your name and current address.
2. List the names of all persons who witnessed the accident or who have knowledge of the facts leading up to the accident.
3. In your own words, describe how the accident occurred.
4. State whether or not you were using your mobile device in any way whatsoever in the time leading up to the accident. If the answer is affirmative, describe in detail how you were using your mobile device.
5. If you were employed on the date of the accident, indicate whether you were performing any work duties at the time of the accident.

[Include appropriate line for attorney of record]